

GRAND JURY SIFTS FLIGHT OF 8 REDS

Bail Trustees Questioned for Evidence of Harboring—Trial of 17 Set for Aug. 20

By **RUSSELL PORTER**

The following developments took place yesterday in the prosecution of Communist leaders accused of criminal conspiracy to teach and advocate the overthrow of the Government by force and violence:

1. A Federal judge set Aug. 20 as a tentative date for the trial of seventeen indicted leaders who were arrested June 20.
2. A Federal grand jury began an investigation into possible obstruction of justice or harboring of eight fugitives from justice.
3. A State Supreme Court hearing was ordered in an investigation of possible banking law violations by the organization calling itself the Civil Rights Congress, which in 1949 and 1951 put up \$441,000 in bail for Communist leaders.
4. A defense move was started to ask a justice of the United States Supreme Court to bail out three trustees of the Civil Rights Congress bail fund now held without bail for contempt of court.

Judge John F. X. McGohey fixed the date for trial. In 1949 he, as United States Attorney, headed the prosecution of eleven top Communists convicted after a nine-month trial. In that case nearly three years elapsed between the

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indictment and affirmation of the conviction last June 4 by the United States Supreme Court.

In the forthcoming case the defense has indicated it intends to seek—and the Government plans to oppose—similar delay.

When the case of the seventeen was called before Judge McGohey yesterday morning, the eleven still in jail in default of acceptable bail appeared in court, but the six free on bail did not. Neither did eight attorneys assigned by the court as defense counsel.

Judge McGohey adjourned the hearing until afternoon, when all appeared except two defendants and one lawyer. The absent defendants were 70-year-old Israel Amter and 69-year-old Jacob Mindel, both of whom have been represented as too ill to be able to escape. The absent lawyer was Leonard Boudin, whose partner, Victor Rabinowitz, explained that he could not be reached in time.

Assistant United States Attorney John M. Foley asked for the Aug. 20 trial date. He explained that the Government did not expect the trial to begin at that time, but wanted the date fixed so as to accelerate the disposal of preliminary matters. He pointed out that defense motions attacking the indictment were scheduled to be heard on or before Aug. 2. The procedure he proposed, he added, would facilitate the final choice of an early trial date.

Judge McGohey said he assumed that if all motions were disposed of by Aug. 20, the Government would then ask for a final trial date to be fixed.

Defense Opposes Date Set

All defense counsel opposed the Aug. 20 date. Mr. Rabinowitz proposed November at the earliest, because of the great amount of work needed to prepare for the defense in view of the many ramifications of the case. Michael I. Begun suggested late fall.

George Blake Charney, a defendant out on \$10,000 bail posted by his father, urged the court to allow those in jail "reasonable opportunity" to consult with counsel they might like to retain in place of lawyers assigned by the court.

"You are not precluded from getting other counsel," Judge McGohey pointed out.

Simon W. Gerson, a defendant still in jail, made the same request.

"Nobody is stopping you," Judge McGohey said.

Gerson then began to argue with the judge, in a hectoring tone.

"I do not propose to be interrogated or to make answers," Judge McGohey replied sharply. Gerson then subsided.

Several of defense counsel asked to be relieved of their assignments, but Judge McGohey referred this to Federal Judge Sylvester Ryan, who had made the assignments. Judge Ryan is on a short vacation, due to return July 30.

The grand jury investigation was begun by calling as witnesses the three trustees of the Civil Rights Congress bail fund who have been jailed for criminal con-

tempt of court. They are Frederick Vanderbilt Field, millionaire "angel" of Communist causes; Dashiell Hammett, mystery-story writer, and W. Alpheus Hunton.

Hammett and Hunton are serving six-month terms and Field a ninety-day sentence, all imposed by Judge Ryan. The three refused to produce the bail fund books, to answer questions about its members or operations, or help in the apprehension of four Communists who had been bailed in their custody.

Yesterday United States Attorney Irving H. Saypol haled the three before the grand jury for about five minutes each. They were then sent back to the Federal House of Detention. They have an opportunity to consult counsel before their expected return to the grand jury room tomorrow.

Counsel Tells of Plans

After the grand jury session, Mr. Rabinowitz, as counsel for the trustees, announced that he was preparing papers to submit to a Supreme Court justice in Washington, asking bail pending appeal in the contempt case.

The Civil Rights Congress is designated by the Federal Attorney General as a Communist front. So is the Council on African Affairs, of which Hunton is secretary. Likewise, the American Committee for the Protection of the Foreign Born, of which Abner Green, another bail-fund trustee, is secretary.

Mr. Green obtained an order to show cause yesterday, returnable before Justice Henry Clay Greenberg this morning in the State Supreme Court, to prevent the State Banking Department from getting possession of the bail fund's books and records.

The banking department had issued subpoenas for the documents in its investigation to determine whether the banking laws had been violated by the exercise of banking functions without obtaining a license from the department.

Justice Greenberg said the hearing would be held to decide whether to issue a stay of execution pending decision on the motion to quash the subpoenas. Mr. Green's petition alleged that the banking department was using its powers illegally to get the names of the lenders of money and securities to the bail fund.

Last Monday Judge Ryan disqualified the Civil Rights Congress bail fund and its trustees from serving as bondsmen in the Federal court. On July 3 the bail fund forfeited \$80,000 bail it had posted for the four bail-jumpers. These jumpers are Gus Hall, the Communist party's national secretary; Harry Winston, national organization secretary; Robert Thompson, New York state chairman; and Gilbert Green, Illinois chairman.

Four others have been missing since June 20, after having been indicted with the seventeen arrested on that date. These four are James E. Jackson, Sidney Stein or Steinberg, Fred Fine and William Marron.

Seven of the eight—all except Marron—are members or alternate members of the party's national committee or ruling body. It is believed they have gone into hiding, here or abroad, to act as a secret Politburo to direct the party's underground movement in this country.